

# Master Supply Agreement: Acme Components Ltd and Brightline Retail Pvt Ltd

## 1. Definitions

- 1.1 "Agreement" means this Master Supply Agreement, including all Schedules and Purchase Orders issued under it.
- 1.2 "Invoice Date" means the date shown on an invoice issued by the Supplier to the Customer.
- 1.3 "Due Date" means the date falling thirty (30) days after the Invoice Date.
- 1.4 "Overdue Amount" means any undisputed amount that remains unpaid after its Due Date.
- 1.5 "Business Day" means a day other than a Saturday, Sunday or public holiday in Chennai, India.

## 2. Scope of Supply

- 2.1 The Supplier shall supply electronic components to the Customer as specified in each Purchase Order accepted by the Supplier.
- 2.2 Delivery shall be made DAP to the Customer's warehouse in Chennai within fourteen (14) Business Days of acceptance of the Purchase Order.
- Each Party shall perform its obligations under this Agreement in a diligent and workmanlike manner, in accordance with applicable law and prevailing industry standards, and shall cooperate in good faith with the other Party to give effect to the purposes of this Agreement.
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## 3. Prices and Invoicing

- 3.1 Prices are stated in Indian Rupees (INR) and are exclusive of GST, which shall be charged at the applicable rate.
- 3.2 The Supplier shall invoice the Customer upon dispatch of each consignment. Invoices shall be payable in accordance with the schedule below.

| Milestone     | Share of order value | When payable                    |
|---------------|----------------------|---------------------------------|
| Advance       | 20%                  | On acceptance of Purchase Order |
| On dispatch   | 70%                  | By the Due Date                 |
| On acceptance | 10%                  | 30 days after delivery          |

## 4. Payment Terms

- 4.1 Payment Terms. The Customer shall pay each invoice in full by the Due Date by bank transfer to the account nominated by the Supplier.
- 4.2 Late Payment. Any Overdue Amount shall accrue a late fee of one and a half percent (1.5%) per month, calculated daily from the Due Date until the date of actual payment.
- 4.3 Early Payment Discount. If the Customer pays an invoice in full within ten (10) days of the Invoice Date, the Customer may deduct a discount of two percent (2%) of the invoice amount excluding GST.

4.4 Disputed Invoices. The Customer shall notify the Supplier in writing of any disputed amount within seven (7) Business Days of the Invoice Date. Undisputed portions remain payable by the Due Date, and Section 4.2 shall not apply to amounts disputed in good faith.

## **5. Term and Termination**

5.1 This Agreement commences on 1 April 2026 and continues for an initial term of two (2) years, renewing automatically for successive one (1) year terms.

5.2 Either Party may terminate this Agreement for convenience by giving not less than sixty (60) days' written notice to the other Party.

5.3 Either Party may terminate this Agreement immediately by written notice if the other Party commits a material breach and fails to remedy it within fifteen (15) days of receiving notice of the breach.

Non-payment of any Overdue Amount for more than forty-five (45) days after the Due Date is a material breach.

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## **6. Limitation of Liability**

6.1 Subject to Section 6.2, each Party's total liability under this Agreement shall not exceed the total fees paid or payable in the twelve (12) months preceding the claim.

6.2 Nothing in this Agreement limits liability for fraud, wilful misconduct, or amounts payable under Section 4.

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## **7. Governing Law**

7.1 This Agreement is governed by the laws of India, and the courts at Chennai shall have exclusive jurisdiction.

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## **8. Warranties**

8.1 The Supplier warrants that all components shall conform to the specifications in the relevant Purchase Order for a period of twelve (12) months from delivery.

8.2 The Customer's sole remedy for breach of Section 8.1 is repair or replacement of the defective components, or a refund of the price paid for them.

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## **9. Confidentiality**

9.1 Each Party shall keep confidential all information disclosed by the other Party under this Agreement and shall use it only to perform this Agreement.

9.2 The obligations in this Section 9 survive termination of this Agreement for three (3) years.

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## **10. Force Majeure**

10.1 Neither Party is liable for delay caused by events beyond its reasonable control, provided that this Section 10 does not excuse any obligation to pay money when due.

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## **11. Notices**

11.1 Notices under this Agreement shall be in writing and delivered by hand, courier or email to the addresses set out in Schedule 1.

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